

The Motion and its supporting documents are timely.

This Motion is unopposed.

However, there is no Answer in the matter, and the address where Defendant was personally served with process is different than the mailing address that the Plaintiff used to provide notice of this Motion.

There is no evidence to suggest that Defendant resides at the address listed under the proof of service for this Motion.

The court does not find that Defendant was properly noticed of this Motion.

Disposition

The Motion will be continue to 9/6/26, 9am.

Plaintiff to provide notice of the Motion and the hearing to Defendant.

Plaintiff to file Order.

**8. 9:00 AM CASE NUMBER: L25-05676
CASE NAME: JULIE SCHINDLER VS. STEPHEN ATWATER
AND NTC OF MTC FURTHER RESPONSES
FILED BY: SCHINDLER, JULIE A M**

TENTATIVE RULING:

This Motion has been continued to 8/11.26, 9am.

Court will provide written notice to both parties.

**9. 9:00 AM CASE NUMBER: L25-07459
CASE NAME: CAPITAL ONE, N.A., SUCCESSOR BY MERGER TO DISCOVER BANK VS. YOLONDA
HARDY
MOTION TO BE RELIEVED AS COUNSEL FILED BY DEF ON 3/24/26
FILED BY: HARDY, YOLONDA**

TENTATIVE RULING:

Counsel for Defendant filed a Motion to be relieved, along with exhibits and a Declaration.

Notice was provided to the Defendant by mail at the address where Defendant was personally served with process.

The Motion is unopposed.

Background

The court has reviewed the Declaration and Exhibits, and, since they reflect on privileged communications, will not provide any detail in this ruling.

After review, this court finds good cause to permit Counsel to withdraw.

Disposition

Counsel's Motion to Withdraw is granted.

Counsel to file Order.

Counsel to file substitution of attorney within 10 calendar days of today, 7/7/26.

10. 9:00 AM CASE NUMBER: L25-10993

CASE NAME: TD BANK USA N.A. VS. ELLASTINE BARKSDALE

MTN TO SET ASIDE DISMISSAL AND ENTER JDGT UNDER STIP. FILED BY PLTF. ON 03/27/2026

FILED BY: TD BANK USA N.A.

TENTATIVE RULING:

Background

Plaintiff filed an amended Motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where she was personally served with notice of the Summons and Complaint.

Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$2,532, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.